

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #12	CCRB Case #: 201802306	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/20/2018 9:18 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/20/2019	Precinct: 48		
Date/Time CV Reported Sat, 03/24/2018 12:00 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/24/2018 12:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mark Ricketts	07883	962053	048 PCT
2. POM Saquoi Harris	02350	961806	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Mark Ricketts	Abuse: Police Officer Mark Ricketts stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris questioned § 87(2)(b)	C . Substantiated
D . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris frisked § 87(2)(b)	D . Unsubstantiated
E . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris frisked § 87(2)(b)	E . Unsubstantiated
F . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris questioned § 87(2)(b)	F . Unsubstantiated
G . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris searched § 87(2)(b)	G . Unsubstantiated
H . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris frisked § 87(2)(b)	H . Unsubstantiated
I . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris searched § 87(2)(b)	I . Complainant Uncooperative
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 24, 2018, § 87(2)(b) filed this complaint on behalf of herself, § 87(2)(b) and § 87(2)(b) with the CCRB online.

On March 20, 2018, at approximately 9:18 p.m., § 87(2)(b) and § 87(2)(b) were passengers in an Uber driven by § 87(2)(b). At the intersection of East Tremont Avenue and 177 Street in the Bronx, PO Saquai Harris and PO Mark Ricketts of the 48 Precinct stopped the Uber in which § 87(2)(b) and § 87(2)(b) were occupants (**Allegations A and B: Abuse of Authority – Vehicle Stop, unsubstantiated**). PO Harris questioned § 87(2)(b) (**Allegation C: Abuse of Authority – Question, substantiated**). PO Harris frisked § 87(2)(b) (**Allegation D: Abuse of Authority - Frisk, unsubstantiated**). PO Harris frisked § 87(2)(b) (**Allegation E: Abuse of Authority - Frisk, unsubstantiated**). PO Harris questioned § 87(2)(b) (**Allegation F: Abuse of Authority - Question, unsubstantiated**). PO Harris allegedly searched § 87(2)(b) (**Allegation G: Abuse of Authority – Search (of person), unsubstantiated**). PO Harris frisked § 87(2)(b) (**Allegation H: Abuse of Authority - Frisk, unsubstantiated**). PO Harris allegedly searched § 87(2)(b) (**Allegation I: Abuse of Authority – Search (of person), complainant uncooperative**). § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No arrests were made or summonses issued. There was no video of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Saquai Harris stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Mark Ricketts stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Harris and PO Ricketts stopped the Uber in which § 87(2)(b)

and § 87(2)(b) were occupants. § 87(2)(g)

§ 87(2)(b) (**BR 01 and BR 24**) consistently said that she got into an Uber Pool, driven by § 87(2)(b) outside of her apartment, located at § 87(2)(b) in the Bronx. § 87(2)(b) sat in the back driver's-side seat, next to § 87(2)(b). After approximately five minutes, when they were in the vicinity of § 87(2)(b), PO Harris and PO Ricketts pulled § 87(2)(b) over. PO Harris approached § 87(2)(b) and asked him for his license and registration. § 87(2)(b) had not observed § 87(2)(b) run any red lights, speed, or commit any other moving violations while she was in the car. § 87(2)(b) did not ever learn the reason why PO Harris and PO Ricketts stopped the car.

§ 87(2)(b) (**BR 02**), who provided a phone statement to the investigation but withdrew from the complaint (**BR 03**), did not know why PO Harris and PO Ricketts pulled him over. § 87(2)(b) thought that PO Harris and PO Ricketts may have stopped him as part of a checkpoint because he did not think that he had committed any moving violations. § 87(2)(b) did not, to his knowledge, run a red light. PO Harris and PO Ricketts never told him why they stopped his vehicle.

§ 87(2)(b) who filed the initial complaint (**BR 04**), provided a phone statement (**BR 05**), but was ultimately uncooperative with the investigation (**BR 06**). § 87(2)(b) consistently

stated that PO Harris told her that he and PO Ricketts had stopped § 87(2)(b)'s vehicle because he had run a red light. However, § 87(2)(b) did not see § 87(2)(b) run a red light.

PO Ricketts (**BR 07**), who was driving the marked police SUV, saw § 87(2)(b) make an illegal left turn from § 87(2)(b). This was the only reason why he and PO Harris decided to pull § 87(2)(b) over.

PO Harris (**BR 08**) could not recall the specific moving violation for which he and PO Ricketts stopped § 87(2)(b).

PO Ricketts and PO Harris did not prepare memo book entries (**BR 09** and **BR 10**), or Stop Reports (**BR 11**) regarding this incident. PO Ricketts and PO Harris did not issue any summonses to § 87(2)(b) for a moving violation. Although PO Ricketts and PO Harris were assigned body-worn cameras at the time of this incident, PO Harris claimed that his body-worn camera was not working, and PO Ricketts did not turn his body-worn camera on; therefore, body-worn camera footage of the incident was unavailable (**BR 12**). There was no other video of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: Police Officer Saquoi Harris questioned § 87(2)(b)

§ 87(2)(b) (**BR 02**) said that PO Harris approached the front driver's side door of his car and told § 87(2)(b) that he smelled marijuana. § 87(2)(b) did not smell any marijuana in the car. PO Harris then told § 87(2)(b) to step out of the car, which he did.

§ 87(2)(b) (**BR 01 and BR 24**) and § 87(2)(b) (**BR 04 and BR 05**) did not hear the conversation that occurred between § 87(2)(b) and PO Harris outside of the car.

PO Harris (**BR 08**) said that as he approached the front driver's seat of § 87(2)(b)'s car, he looked around the center console area to see if there was any visible marijuana or weapons. PO Harris did not see any marijuana or weapons as he scanned the interior of the car. Once § 87(2)(b) was outside of the car, PO Harris asked § 87(2)(b) if he had any drugs or weapons in the car. PO Harris added that he did not suspect § 87(2)(b) of having any weapons, he did not observe anything on § 87(2)(b)'s person that he suspected could be a weapon, and he had not seen anything inside § 87(2)(b)'s car that he thought could have been a weapon.

PO Ricketts's (**BR 09**) statement was consistent with that of PO Harris.

According to People v. Garcia, 20 N.Y.3d 317, 2012 (**BR 25**), a police officer may not, without founded suspicion for the inquiry, ask occupants of a lawfully stopped vehicle if they possess any weapons.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be **substantiated**.

Allegation (D) Abuse of Authority: Police Officer Saquoi Harris frisked § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Saquoi Harris frisked § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer Saquoi Harris questioned § 87(2)(b)
Allegation (G) Abuse of Authority: Police Officer Saquoi Harris searched § 87(2)(b)
Allegation (H) Abuse of Authority: Police Officer Saquoi Harris frisked § 87(2)(b)
Allegation (I) Abuse of Authority: Police Officer Saquoi Harris searched § 87(2)(b)

It is undisputed that PO Harris frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) (BR 02) said that PO Harris approached him at the front driver's side of the car, told him that he smelled marijuana, and asked him to step out of the car. § 87(2)(b) denied smelling any marijuana and stepped out of the car. PO Harris patted down the outside of § 87(2)(b)'s clothing, but did not go into his pockets. § 87(2)(b) then went back into the car. § 87(2)(b) heard PO Harris ask § 87(2)(b) and then § 87(2)(b) to step out of the car, but he did not observe what occurred between them and PO Harris when they were out of the car.

§ 87(2)(b) (BR 01 and BR 24) consistently stated that PO Harris approached § 87(2)(b) who was in the front driver's seat, and told him that the car smelled like marijuana. PO Harris asked § 87(2)(b) to get out of the car, which he did. PO Harris and § 87(2)(b) stood by the front driver's side door for approximately five seconds and then walked to the back of the car. § 87(2)(b) could not see what occurred between PO Harris and § 87(2)(b) when they were at the back of the car. After approximately two minutes, PO Harris walked § 87(2)(b) back to the front driver's seat, and § 87(2)(b) got into the car.

PO Harris then approached § 87(2)(b) and knocked on her window. § 87(2)(b) opened the window a few inches, and PO Harris asked her if she smelled any marijuana and if she had any marijuana on her. § 87(2)(b) replied that she did not smell any marijuana and did not have any marijuana in her possession. PO Harris instructed § 87(2)(b) to step out of the car and walk to the trunk, which she did.

At the back of the car by the trunk, PO Harris asked § 87(2)(b) if she had anything sharp in her pockets, and she replied that she had her keys and her cell phone. § 87(2)(b) told PO Harris that she did not want him to go into her pockets, adding that she did not want a male officer to search her. PO Harris replied that he had to check her pockets and that checking her pockets was not a search. PO Harris then put his hand into § 87(2)(b)'s jacket pocket and removed her keys, two cell phones, and a thin slip holding her ID and her credit card. PO Harris put his hand into her other jacket pocket, but there was nothing in this pocket for him to remove. PO Harris had not patted down the exterior of § 87(2)(b)'s pockets prior to putting his hand inside of them, and had not patted down any other part of § 87(2)(b)'s body.

As PO Harris was putting his hands into § 87(2)(b)'s jacket pockets, he asked if she knew § 87(2)(b) or § 87(2)(b) and she replied that she did not. PO Harris gave § 87(2)(b) back her belongings and instructed her to go back into the car.

§ 87(2)(g)
§ 87(2)(b) consistently stated that she was looking at her phone while § 87(2)(b) was outside of the car, but saw PO Harris pat down the outside of § 87(2)(b)'s clothing. § 87(2)(b) did not recall seeing PO Harris put his hands into any of § 87(2)(b)'s pockets. Once § 87(2)(b) was back in the car, PO Harris asked § 87(2)(b) to step out of the car, which she did. PO Harris patted § 87(2)(b) down around her

smelled marijuana in the car and that he needed to pat her down for safety reason. § 87(2)(b) did not appear to be intoxicated, and PO Harris did not observe anything on § 87(2)(b) that appeared to be a weapon. PO Harris patted down § 87(2)(b) in the same manner and for the same reasons that he had patted down § 87(2)(b) and § 87(2)(b).

PO Harris asked § 87(2)(b) if she would open her bag for him, and she replied, “sure.” PO Harris did not smell any marijuana coming from the bag and did not suspect that there were any weapons inside of the bag. PO Harris turned on his flashlight and looked inside the bag as § 87(2)(b) held it open for him. He did not put his hands into the bag and did not remove anything from the bag, and he denied asking her to remove anything from her pockets. PO Harris told § 87(2)(b) that she could go back in the car.

Once everyone was inside of the car, PO Harris and PO Ricketts went to their marked car, and PO Harris checked § 87(2)(b)'s license. PO Harris determined that § 87(2)(b) had no open warrants, so he and PO Ricketts decided to use their discretion and give § 87(2)(b) a verbal warning about the moving violation in lieu of issuing him a summons.

§ 87(2)(g)
PO Ricketts said that he did not smell the marijuana until he was standing beside the car and § 87(2)(b) opened the car windows. § 87(2)(b) and § 87(2)(b) both had bags with them when they exited the car. § 87(2)(b) and § 87(2)(b) both voluntarily opened their bags for PO Harris and shook their bags while PO Harris looked inside. PO Ricketts did not hear PO Harris ask either § 87(2)(b) or § 87(2)(b) to open their bags. PO Ricketts did not see PO Harris remove anything from § 87(2)(b) pockets. PO Harris never explained to PO Harris why he decided to pat down § 87(2)(b) and § 87(2)(b).

According to People v. Chestnut, 43 A.D.2d 260, 1974 (BR 13), the smell of marijuana smoke, with nothing more, can be sufficient to provide officers with probable cause to search an automobile and its occupants.

§ 87(2)(g)
It is therefore recommended that **allegations D, E, F, G, and H** be **unsubstantiated**. § 87(2)(g)
it is recommended that **allegation I** be closed as **complainant uncooperative**.

§ 87(4-b), § 87(2)(g)

§ 87(2)(g), § 87(4-b)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 17**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 18**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 19**).
- PO Harris has been a member of service for one year and has been a subject in three CCRB complaints with a total of seven allegations, none of which was substantiated. § 87(2)(g)
- PO Ricketts has been a member of service for one year and has been a subject in one CCRB complaint with a total of one allegation, which was not substantiated. § 87(2)(g)

§ 87(2)(g)

- § 87(2)(b) declined to mediate this complaint.
- As of June 20, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR 20**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature _____ Print Title & Name _____ Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____